

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AUTHORIZING THE CONTRACTOR LICENSING BOARD TO LICENSE AND OTHERWISE REGULATE PORTABLE FIRE EXTINGUISHER, HOSE STATION EQUIPMENT AND HOOD SYSTEM CLEANING AND MAINTENANCE PROFESSIONALS, MAKING CONFORMING AMENDMENTS, AND REPEALING OBSOLETE PROVISIONS OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 5.04.030, Types of Businesses, Activities and Events, of Chapter 5.04, Business Licenses Generally, Section 5.44.010, Purpose—Authority—General provisions, Section 5.44.020, License required—Fees, and Section 5.44.050, Contractor licensing board—Powers and duties, of Chapter 5.44, Contractors, of Title 5, Business Licenses and Regulations, of the City of Cheyenne, Wyoming, is hereby amended to read:

5.04.030 - Types of businesses, activities and events.

A. For the purposes of this chapter, the following types of business and event activities are identified, and may include more specific regulations contained elsewhere in the city code or other ordinances per type of business, activity or event:

1. Amusements (billiard/pool tables; bowling lanes; circuses and carnivals; coin-operated vending machines; skating rinks; theaters);

2. Auctioneer;

3. Barber and beauty shops;

4. Bed and breakfast inn/facility;

5. Body art establishments and operations, body artists;

6. Firearm dealer;

~~Fire extinguisher (portable) and hose station equipment (servicing/testing);~~

7. Fireworks permit;

8. Food service establishments (restaurants, dairies, food wagons/stands/push carts, temporary parade vendors);

9. Fuel dispensing; flammable liquid (private, retail, wholesale);

10. Garages, car lots, service stations (new and used sales; vehicular repair);

- 11. Junkyards/auto wrecking salvage;
- 12. Liquor sales, businesses and operations;
- 13. Massage business establishments and massage therapists;
- 14. Mobile home parks;
- 15. Motor-assisted scooters, electric bicycles, and bicycles equipped with GPS;
- 16. Nicotine product sales (retail);
- 17. Noise permits;
- 18. Parade; marching permits;
- 19. Pawnbrokers;
- 20. Private detective/security guard (businesses and employees);
- 21. Public transport (taxis, carriages and drivers);
- 22. Recycling;
- 23. Secondhand dealer;
- 24. Sexually oriented businesses;
- 25. Temporary/transient merchants; door to door solicitors;
- 26. Towing and wrecker recovery operations;
- 27. Tree sales (temporary cut evergreen, Christmas trees); and
- 28. Tree maintenance businesses.

5.44.010 - Purpose—~~Authority—General~~ and authority; general provisions.

- A. The purpose of this chapter is to protect the public health, safety and welfare by regulating and controlling the practice of certain building and professional trades within the city by requiring that only contractors, licensed by the contractor licensing board, and persons actively supervised by licensed contractors may engage in those certain building trades.
- B. Authority is granted cities and towns by ~~Wyo. Stat. Section~~ W.S. 15-1-103(a)(xiii) to license and regulate activities affiliated with building contractors and certain building and professional trades. ~~Pursuant to Ordinance No. 3335, this~~ This chapter may ~~also~~ be referred to as the "Cheyenne contractor licensing ordinance."

- C. The chief building official, or designee, is authorized and directed to enforce the provisions of this chapter.
- D. The chief building official, or designee, and members of the contractor licensing board, acting in good faith and without malice, are not personally liable for any damage to persons or property as a result of any act or by reason of any act or omission in the discharge of their duties. Any suit brought against the chief building official or board members will be defended by the city until final termination of such proceedings with any judgment being assumed by the city.

5.44.020 - License required;—Fees. fees.

- A. A person may not perform work or service in the construction, erection, addition, alteration, repair, equipping, moving, removal, conversion or demolition of any building or structure within the city unless they have first obtained the applicable contractor and/or building trade license issued through the chief building official as required by the contractor licensing board rules and regulations. The rules and regulations are on file in the office of city clerk.
- B. Licensees must provide proof of general liability insurance and, if applicable, worker's compensation coverage in accordance with the board's rules and regulations.
- C. Contractor and building trade application and license fees are specified in the contractor licensing board's rules and regulations. Any fee changes must be approved by the governing body.

D. In addition to the licensing requirements imposed under subsection (A) of this section, no person shall perform any work or service as provided below without first obtaining an applicable contractor license issued through the chief building official as required by the contractor licensing board rules and regulations. A license shall be required for the:

- 1. Maintaining or repair of any portable fire extinguisher;
- 2. Maintaining or repair of any hose station equipment; and
- 3. Servicing of any kitchen hood system, including washing, maintaining, inspecting or otherwise returning to service a kitchen hood system.

5.44.050 - Contractor licensing board;—Powers powers and duties.

- A. Duties of the contractor licensing board are:
 - 1. To ensure persons engaged in certain building and other specified trades within the city are properly licensed by the board or actively supervised by a licensed contractor or supervisor;

2. To conduct hearings and investigations necessary to enforce the provisions of this chapter.

B. The board has the power to:

1. Adopt rules and regulations to accomplish the responsibilities and duties of this chapter. The chief building official, or designee, will prepare regulations for the board's approval pursuant to the Wyoming Administrative Procedure Act;
2. Determine qualifications of applicants seeking licenses as described in the board's rules and regulations, and approve or deny the issuance of same;
3. Establish standards and approve examinations and examining procedures, and determine what, if any, examinations, and evaluations are required of applicants to determine qualification:
 - a. Examinations given are to measure an applicant's knowledge of applicable codes, laws and ordinances for the type of license requested,
 - b. As directed by the board, examinations will be administered as specified in the board's rules and regulations. If the board determines an applicant is qualified to meet licensing requirements, the board will direct the building official to issue the license;
4. Adopt rules for reciprocity in examination and classification; but in all cases to grant reciprocity, for the purposes of certification, to persons determined qualified by authorized agencies of the state;
5. Suspend or revoke licenses issued or other penalties/discipline determined to be appropriate;
6. Conduct hearings in accordance with procedures outlined in the Wyoming Administrative Procedure Act, Wyoming Statute Section 16-3-101 et seq. and the board's rules and regulations.

Section 2. That Chapter 8.28, Portable Fire Extinguishers and Hose Station Equipment, and Chapter 8.29, Hood Cleaning Companies, of Title 8, Health and Safety are hereby repealed.

~~Chapter 8.28 — PORTABLE FIRE EXTINGUISHERS AND HOSE STATION EQUIPMENT~~

~~8.28.010 — Definitions.~~

~~The following definitions shall apply in the interpretation and enforcement of the following provisions relative to portable fire extinguishers and hose station equipment:~~

~~"Hose station equipment" means hoses, nozzles, hangers and connectors to a standpipe system.~~

~~"Hydrostatic testing" means pressure testing by hydrostatic methods.~~

~~"Portable fire extinguisher" means a device that contains chemicals, fluids or gases for extinguishing fires, the method for application of its contents, and which is capable of being readily moved from place to place.~~

~~"Service and servicing of hose station equipment and portable fire extinguishers" means servicing of hose station equipment and portable fire extinguishers including any or all of the following: Charging, filling, maintaining, recharging, refilling, repairing and testing.~~

~~8.28.020 – Business license required.~~

~~Every person who services and tests portable fire extinguishers and hose station equipment is required to obtain a business license. The license must state specifically whether it is issued for portable fire extinguishers or hose station equipment, or both. Applications, with nonrefundable annual licensing fee of ninety dollars (\$90.00), must be submitted to the office of city clerk. Upon approval by the fire chief of the fire department, the city clerk will issue a license which will be effective for one year from date of issuance. General licensing provisions set forth in city code Chapter 5.04 apply to this type of license.~~

~~8.28.030 – Servicing and testing.~~

~~All persons licensed must service and test all portable fire extinguishers and hose station equipment in accordance with the International Fire Code, as adopted and referenced in Chapter 8.12.~~

~~8.28.040 – Hydrostatic testing.~~

~~Every person performing hydrostatic testing of fire extinguishers manufactured in accordance with the specifications of the U.S. Department of Transportation shall do so in accordance with the procedures specified by that department for compressed gas cylinders. Persons qualified to do this work shall be given such authority on their licenses.~~

~~8.28.050 – Examination.~~

~~A. Applicants for a portable fire extinguisher and hose station equipment license are required to pass a written examination administered by the fire department or submit proof of recognized certification to be approved by the fire prevention bureau of the fire department. The examination may be supplemented by practical tests or demonstrations deemed necessary to determine the applicant's knowledge and ability to service portable fire extinguishers and hose station equipment. The results of the examination shall be forwarded to the office of city clerk to accompany the license application.~~

~~B. — An applicant may not test more than once in a thirty (30) day period.~~

~~8.28.060 — Insurance.~~

~~All persons licensed are required to maintain current general liability insurance equal to the minimum amount required of all other contractors pursuant to the provisions of city code Chapter 5.44, Contractors.~~

~~8.28.070 — Tagging of serviced portable fire extinguishers and hose station equipment.~~

~~When a licensee services a portable fire extinguisher or hose station equipment, a tag shall be affixed that at least states the month and year the service is performed; type of extinguisher serviced, if an extinguisher, and name and license number of the licensee.~~

~~Chapter 8.29 — HOOD SYSTEM CLEANING COMPANIES~~

~~8.29.010 — Definitions.~~

~~The following definitions shall apply in the interpretation and enforcement of the following provisions relating to hood system cleaning and equipment.~~

~~"Cleaning and returning to service hood system" means servicing of the hood system, including any or all of the following: washing, maintaining, inspecting, returning to service, and providing documentation of the work performed.~~

~~"Commercial cooking appliances" means appliances used in commercial food service establishments for heating and cooking food and which produce grease laden vapors, steam, fumes, smoke, or odors that are required to be removed through a local exhaust ventilation system. Such appliances include deep fat fryers, upright broilers, griddles, broilers, steam-jacketed kettles, hot-top ranges, underfired broilers (charbroilers), ovens, barbecues, rotisseries, and similar appliances. For the purpose of this definition, a food service establishment shall include any building or portion thereof used for the preparation and serving of food.~~

~~"Hood system" means an air intake device used to capture by entrapment, impingement, adhesion, or similar means, grease and similar contaminants before they enter the duct system. The types of hood systems are:~~

~~Type I. A kitchen hood system for collection and removing grease vapors and smoke.~~

~~Type II. A general kitchen hood system for collecting and removing steam vapor, heat, odors, and products of combustion.~~

~~8.29.020 — Business license required.~~

~~Every company who cleans hood systems as defined by [Section] 8.29.010 is required to obtain a business license to perform hood system cleaning. A licensed company is allowed to have one licensed member supervise no more than three additional non-licensed employees on the same job. An application and a non-refundable annual licensing fee of ninety dollars (\$90.00) must be submitted to the office of city clerk. Upon approval by the fire marshal, or his or her designee, the city clerk shall issue a license which will be effective for one year from date of issuance. General licensing provisions set forth in Chapter 5.04 of the city code apply to this type of license.~~

~~8.29.030 – Servicing and testing.~~

~~All persons licensed must clean and inspect all hood systems and equipment in accordance with the International Fire Code, as adopted and referenced in Chapter 8.12 of the city code.~~

~~8.29.040 – Examination.~~

~~Applicants for a hood system cleaning license shall have successfully passed a written examination administered by a recognized association or group meeting the standard of NFPA 96. The applicant must submit proof of recognized certification to be approved by the city. The examination may be supplemented by practical tests or demonstrations deemed necessary to determine the applicant's knowledge and ability to clean hood systems and related equipment. The results of the examination shall be forwarded to the office of city clerk to accompany the license application.~~

~~8.29.050 – Insurance.~~

~~All persons licensed are required to maintain current general liability insurance equal to the minimum amount required of all other contractors pursuant to the provisions of Chapter 5.44 of the city code.~~

~~8.29.060 – Tagging of cleaned hood systems and related equipment.~~

~~When a licensee cleans and returns the hood system and its related equipment back into service, a tag shall be affixed that at least states the month and year the service is performed, the type of work completed, and the name and license number of the licensee. Further documentation of the reported work is required to be sent to the fire prevention division of the fire department within seven days of completed work. Only pre-approved forms meeting the requirements of NFPA 96 and the fire prevention division of the fire department will be accepted as documentation of work performed.~~

Section 3. Any annual business license issued by the office of the city clerk authorizing the service and testing of portable fire extinguishers and hose station equipment or the cleaning and maintaining of kitchen hood systems shall be terminated or otherwise cancelled on January 1, 2025, subject to the requirements imposed by Section 4 of this ordinance.

Section 4. Not later than January 1, 2025, the contractor licensing board shall promulgate rules specifying the manner and process through which annual business licenses issued by the

office of the city clerk to persons who service and test portable fire extinguishers and hose station equipment and to persons who clean or otherwise maintain kitchen hood systems will be transitioned to contractors licenses issued by the board. The rules required under this subsection shall include provisions that grant applicable licensees a pro rata refund or credit for any license fee previously submitted to the city clerk for a business license that is being terminated or otherwise canceled prior to the expiration date of the annual business license.

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. This ordinance shall be in full force and effect on January 1, 2025, following approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

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MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Bob Mason, BC of Prevention, Cheyenne Fire Rescue Dept.

DATE: October 3, 2024

SUBJECT: An ordinance repealing Chapters 8.28 and 8.29 of *The Code of the City of Cheyenne, Wyoming*.

Please find attached a proposed ordinance change that repeals Chapter 8.28 Portable Fire Extinguishers and Hose Station Equipment, and Chapter 8.29 Hood System Cleaning Companies, of the Cheyenne City Code. Currently the responsibility for licensing companies that service fire extinguishers, and companies that provide restaurant hood cleaning services falls on the City Clerk's Office. Due to the nature of these licenses, it is appropriate that the approval and licensing of these entities rests with the Cheyenne Fire Rescue Department and the Cheyenne Contractor Licensing Board (CLB). Over the past several months I have amended the requirements for fire licensing in the CLB's *City of Cheyenne Contractor Licensing Regulations*, which includes new licensing requirements for fire extinguisher service companies, and hood system cleaning companies. These changes are ready to be put before the CLB for consideration and adoption, so I respectfully request your support and approval of this ordinance change.